

Calendar Line 1

Case Name: *Fortune Vieyra v. San Jose Day Nursery et al.*

Case No.: 23CV425445

I. BACKGROUND

This is an action by plaintiff Fortune Vieyra against defendants San Jose Day Nursery (“SJDN”) and Angela Gomez, an employee of SJDN (collectively, “Defendants”). As the court has previously noted, this action is directly related to an ongoing child custody case between Vieyra and Elizabeth Jorgensen (Santa Clara County Case No. 21CP000545) in which Vieyra and Jorgensen have a fundamental disagreement over custody of their child, E.V., as well as over E.V.’s gender identity.¹

According to the operative third amended complaint (“TAC”), E.V. attended SJDN’s daycare for at least a year, during which time Defendants allegedly sided with Jorgensen and against Vieyra in affirming a male gender identity upon E.V., contrary to Vieyra’s express wishes and instructions. (TAC, ¶¶ 2-6.) From October 4, 2022 to November 2, 2022, Vieyra exchanges a series of emails with SJDN and Gomez about his wishes, but he was allegedly excluded from critical conversations. According to the TAC, Defendants held secret meetings with Jorgensen and favored communications with her, neglecting Vieyra’s parental rights and causing harm to both him and E.V. (*Ibid.*)

Vieyra filed the child custody case in family court on September 8, 2021. Over two years later, on November 7, 2023, he filed the original complaint in this case, stating causes of action for: violation of parental rights; intentional infliction of emotional distress; civil conspiracy; negligence; fraudulent concealment; discrimination based on race in violation of the California Unruh Civil Rights Act; child abuse; and discrimination based on race and gender. On December 12, 2023, he filed a first amended complaint (“FAC”), with causes of action for: violation of parental rights; intentional infliction of emotional distress; civil conspiracy; common law negligence; fraudulent concealment; race discrimination; child abuse and discrimination; and breach of contractual obligations.

On May 14, 2024, this court heard a demurrer to and motion to strike the FAC filed by Defendants, as well as a motion for protective order filed by Vieyra. The court sustained the demurrer on the grounds of uncertainty and failure to state sufficient facts; denied the motion to strike as moot given the ruling on the demurrer; and denied Vieyra’s motion for protective order as premature at best.² The order granted Vieyra 20 days’ leave to amend. The order also contained five specific admonishments to Vieyra, including that new claims or parties could not be added and that any amended pleading would have to comply with rule 2.112 of the California Rules of Court. (See May 14, 2024 Order, pp. 10:13-11:6.)

On May 24, 2024 Vieyra filed his second amended complaint (“SAC”). The SAC stated seven properly labeled causes of action, in accordance with rule 2.112: (1) Negligent

¹ As explained in prior orders, the court refers to the child as “E.V.” based on the child’s birth name. The court takes no position regarding the correct name for the child, as that is one of the fundamental disputes between the parents in family court.

² The court takes judicial notice of the May 14, 2024 order on its own motion, under Evidence Code section 452, subdivision (d).